

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL No.32/2026

M/S Naqeeb Ullah Khan Tareen & Brothers
Through its Authorized Representative Naqeeb Ullah Khan,
Holding CNIC No.54303-8163957-7
Office at Band road Pishin.

.... Appellant

Versus

1. Local Government Department, Through its Secretary office at civil Secretariat, Zarghoon road Quetta.
2. Chief officer Municipal corporation Pishin, District Pishin
3. Grievance Redressal Committee, through its Chairman Division Quetta.
4. M/s A.H.S Brothers
5. Assistant Engineer Municipal Corporation Pishin, District Pishin.

.... Respondents

Quorum

- | | |
|----------------------------|--------------------|
| 1. Habib-Ur-Rehman Jamot | Chairman PRC |
| 2. Iftikhar Ahmed Sanjrani | Member PRC |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Iftikhar Ahmed Mir | Private Member PRC |
| 5. Syed Muheebullah | Private Member PRC |

APPEAL UNDER RULE-56-A OF THE BALUCHISTAN PUBLIC PROCUREMENT RULES, 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252609861393 BY THE MUNICIPAL CORPORATION PISHIN AT DISTRICT PISHIN OF LOCAL GOVERNMENT DEPARTMENT GOVERNMENT OF BALUCHISTAN

For the Appellant: Naqeeb Ullah Khan

For the Respondents No. 3 Representative

For the Respondents No. 5 In Person

DECISION

Announced on this 24th day of February, 2026, under Rule 56-A of the Baluchistan Public Procurement Rules, 2014.

1. BRIEF FACTS

The Appellant is a contractor duly registered with the Pakistan Engineering Council (PEC) under Category C-4, and is also registered with the Federal Board of Revenue (FBR) and the Baluchistan

Revenue Authority (BRA). The Procuring Agency, namely Municipal Corporation Pishin, invited bids vide PRQ No. 271 dated 18-09-2025 through Single-Stage Two-Envelope Procedure for various works including TSE No. 252609861393 titled "Repair and Renovation of Office of the Municipal Corporation Pishin," having an estimated cost of PKR 10,000,000.

The technical bids were opened on 03-10-2025. Out of ten participating bidders, eight bidders, including the Appellant, were declared non-responsive during technical evaluation on the grounds of non-compliance with mandatory eligibility requirements prescribed in the bidding documents.

Subsequently, the financial bids of technically responsive bidders were opened on 31-12-2025, and Respondent No. 4 was declared the successful bidder.

Aggrieved by its disqualification, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) within prescribed time limit on 02-01-2026, which was duly acknowledged. However, the CRC rejected the complaint vide order dated 08-01-2026 on the ground of limitation without examining the merits of the case.

Dissatisfied with the outcome of the said proceedings, the Appellant preferred the present this Appeal before this Procurement Review Committee under Rule 56-A of the BPPRA Rules, 2014.

2. PRAYERS OF THE APPELLANT

The Appellant has prayed for the following relief:

- i. That the impugned procurement proceedings and evaluation process be declared unlawful, arbitrary, and tantamount to mis-procurement.
- ii. That the Procuring Agency be restrained from proceeding further with the procurement process.
- iii. That the Appellant be declared technically responsive and be considered for further evaluation in accordance with law.
- iv. That any other relief deemed appropriate in the interest of justice, transparency, and fair play be granted.

The Appellant asserted that it fulfilled all eligibility requirements and was wrongfully declared non-responsive.

3. REPLY AND CONTENTIONS OF THE RESPONDENTS

The Respondents appeared before this Committee, submitted written replies, and contested the appeal. Their submissions are summarized as follows:

- i. That the Technical Evaluation Committee conducted evaluation strictly in accordance with the bidding documents and the BPPRA Rules, 2014.
- ii. That the Appellant was declared non-responsive due to non-compliance with mandatory eligibility requirements prescribed in the bidding documents.
- iii. That the decision of the Technical Evaluation Committee was lawful, justified, and based on documentary record.
- iv. That the Respondents further alleged that the Appellant had withdrawn its Call Deposit Receipt (CDR) after submission of its bid and, therefore, was not entitled to further consideration in the procurement process.

4. POINTS FOR DETERMINATION

In light of the pleadings and submissions of the parties, the following points arise for determination:

- i. Whether the Appellant fulfilled the mandatory eligibility criteria prescribed in the bidding documents.
- ii. Whether the Appellant substantiated its claim of having submitted similar assignments as required under the eligibility criteria.
- iii. Whether the allegation of withdrawal of Call Deposit Receipt (CDR) by the Appellant has been proven.
- iv. Whether the Procuring Agency lawfully declared the Appellant non-responsive.

5. FINDINGS OF THE COMMITTEE

After careful examination of the record, pleadings of the parties, and applicable provisions of the BPPRA Rules, 2014, this Committee records the following findings:

- i. The bidding documents clearly prescribed submission of documentary evidence of similar assignments as a mandatory eligibility requirement. Compliance with such requirement was essential for technical responsiveness.
- ii. The Appellant failed to produce documentary evidence establishing completion or execution of similar assignments as required under the eligibility criteria.
- iii. The Appellant made a general reference to similar work experience in its brochure, wherein only one similar work order was mentioned. However, even that single work order was neither attached with the appeal nor produced before this Committee for verification.
- iv. Mere assertion or reference without submission of supporting documentary evidence is insufficient to establish compliance with mandatory eligibility requirements.
- v. Accordingly, the Appellant failed to substantiate its claim regarding submission of similar assignments and failed to establish compliance with mandatory eligibility criteria.
- vi. The Respondents alleged that the Appellant had withdrawn its Call Deposit Receipt (CDR). However, no documentary evidence, withdrawal application, acknowledgment, or financial record was produced before this Committee to substantiate such allegation. Therefore, the said contention remains unproven and cannot be relied upon.
- vii. The burden of proving compliance with eligibility criteria rests upon the bidder. In the present case, the Appellant failed to discharge this burden by producing required documentary evidence.
- viii. Consequently, the Committee finds that the Procuring Agency acted within its lawful authority in declaring the Appellant non-responsive due to failure to meet mandatory eligibility requirements.

6. DECISION

In view of the foregoing findings and after careful consideration of the record and applicable law, this Committee concludes as follows:

- i. The allegation of withdrawal of Call Deposit Receipt (CDR) made by the Respondents remains unsubstantiated and is not relied upon by this Committee.
- ii. However, the Appellant failed to prove submission of similar assignments as required under the

mandatory eligibility criteria.

iii. The Appellant did not produce documentary evidence of similar work experience, and even the single similar work order referred to in its brochure was not attached with the appeal nor produced before this Committee.

iv. Failure to establish compliance with mandatory eligibility requirements renders the Appellant non-responsive in accordance with the BPPRA Rules, 2014.

Accordingly, the present Appeal is hereby DISMISSED, solely on the ground that the Appellant failed to prove submission of similar assignments as required under the eligibility criteria.

The Registrar is directed to communicate this decision to the Appellant and all Respondents for necessary compliance.

Announced under the seal and authority of the Procurement Review Committee.



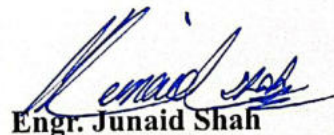
Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

24/02/2026

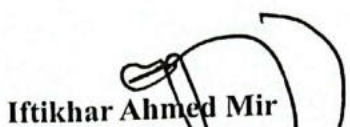


24/02/2026

Iftikhar Ahmed Sanjrani
Member
Procurement Review Committee
BPPRA

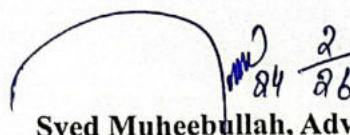


Engr. Junaid Shah
Member
Procurement Review Committee
BPPRA



24/2/2026

Iftikhar Ahmed Mir
Member
Procurement Review Committee
BPPRA



24/2/2026

Syed Muheebullah, Advocate

Member
Procurement Review Committee
BPPRA